

CASE SUMMARY

State (BSES YPL) v. Tilak Raj

SC No. 286/2021 | FIR No. 755/2017, PS Nand Nagri | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

COURT	Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi
JUDGE	Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)
DATE OF JUDGMENT	28 January 2026 (reserved 24 December 2025) (date of inspection / offence: 3 August 2017)
PARTIES	State (BSES Yamuna Power Ltd.) v. Tilak Raj, R/o E-61-A/388, Jhuggi, D-2 Block, Nand Nagri, Delhi (new address: B-66, Gali No. 3, Saboli Extension, Delhi)
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Sections 65B, 106 & 4, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.
RESULT	Convicted under Section 135, Electricity Act, 2003. Matter posted for hearing on quantum of sentence.

CHARGE BEFORE THE COURT

Whether the accused Tilak Raj dishonestly abstracted electricity at his unmetered ground-floor jhuggi premises through a two-core black wire connected from the Distribution Box of a BSES YPL street light, the supply running a commercial wire-rolling workshop, so as to attract Section 135(1)(a) of the Electricity Act, 2003; and whether he discharged the onus cast by the third proviso to Section 135(1).

FACTS

On 3 August 2017 at about 11.10 a.m., an inspection team of BSES Yamuna Power Ltd. headed by Sh. Jitendra Kumar (DGM) inspected the premises at E-61/A-338, Block D-2, Ground Floor, Nand Nagri, Shahdara, Delhi. No electricity meter was installed at the site; the accused was found drawing supply through a two-core black wire connected from the Distribution Box of a BSES YPL street light. The accused was present at the spot; the connected load was 2.518 KW, used for commercial purposes (wire-rolling work), with some of the accused’s workers also present. Sh. Akshay Kaushik videographed the proceedings; an Inspection Report, Load Report and Seizure Memo were prepared at the spot. The company assessed a theft demand of Rs. 1,73,506/-, which went unpaid; its Authorised Officer thereupon filed the complaint on which FIR No. 755/2017 was registered.

Notice under Section 251 Cr.P.C. was given on 25 July 2024 — nearly seven years after the offence — and the accused pleaded not guilty. The prosecution examined three witnesses: PW-1 SI Ombir Singh (IO; proved the endorsement, FIR, Section 41A notice, Aadhaar copy and Pabandinama), PW-2 Akshay Kaushik (videographer, proving the CD and a Section 65B certificate, Ex.PW2/B) and PW-3 Jitendra Kumar (DGM and team head; proved the inspection report, load report, seizure memo, theft bill and complaint). Under Section 313 Cr.P.C. the accused denied

all allegations and pleaded false implication; he led no defence evidence, and no settlement of the theft bill was reported.

REASONING OF THE COURT

HEADNOTE

Tapping the distribution box of the licensee's street-light infrastructure to run a commercial workshop from unmetered premises is direct theft within Section 135(1)(a); the compulsory presumption in the third proviso operates with full force where the accused leads no evidence, and neither the passage of more than eight years from offence to judgment nor the accused's relocation erodes unshaken official testimony supported by a Section 65B-certified videography.

Section 135(1)(a) was engaged by the street-light distribution box tap. The Court set out the ingredients of Section 135(1), importing Section 24 IPC for “dishonestly,” and treated the two-core wire run from the street-light Distribution Box of BSES YPL to the unmetered premises as a clause (a) connection with the licensee's service facilities. On proof of that artificial means, the third proviso's presumption of dishonest use arose.

The inspection stood proved through unshaken, 65B-supported evidence. PW-3 (DGM and team head) and PW-2 (videographer) deposed consistently to the absence of any meter, the wire from the street-light distribution box, the accused's presence, and the 2.518 KW commercial (wire-rolling) load; the CD was played in court and proved with a Section 65B certificate (Ex.PW2/B). In cross-examination PW-3 reaffirmed that no meter existed and added that the accused's workers were present — answers that strengthened rather than shook the prosecution. The bare suggestion that the videography was fabricated was denied, and neither the accused's identity nor the premises' identity in the video was disputed.

The absence of a public witness did not weaken the prosecution. No animosity of the officials was shown; on *Punjab State Electricity Board v. Ashwani Kumar*, 2010 (7) SCC 569, the official inspection report carries a presumption of regularity, and on *Sushil Sharma v. BSES Rajdhani Power Ltd.* (Delhi HC, CrI. A. 1060/2010), non-examination of an independent witness is no infirmity.

The presumption was compulsory, and the accused led nothing to rebut it. Following *Neeraj Dutt* (compulsory “shall presume”) and *Hiten P. Dalal* (prudent-man standard), the Court noted the accused led no defence evidence, offered no explanation for the appliances running at the premises, and claimed no Genset. The natural rebuttal — paid electricity bills, per *Mukesh Rastogi* and the Section 106 onus — was never attempted; nor was there an iota of evidence that the premises in the videography were not his. The presumption stood un rebutted.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1)(a) — Theft of Electricity

The Court treated clause (a) — tapping or making a connection with a licensee's overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated the drawing of supply to unmetered premises through a wire connected from the distribution box of the licensee's street-light network as satisfying the requirement of dishonest intention.

Third Proviso to Section 135(1) — Presumption of Dishonest Use

Read as a reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use “until the contrary is proved.” Reading it with the “shall presume” jurisprudence (*Neeraj Dutt*) and the rebuttal standard (*Hiten P. Dalal*), the Court held that the burden shifted to the accused to make innocence reasonably probable — a bare denial, without evidence of a lawful source or paid bills, could not discharge it.

HELD

The prosecution proved beyond reasonable doubt that no electricity meter was available at the accused’s premises at the time of inspection and that Tilak Raj was found indulging in direct theft of electricity through an illegal wire — an offence punishable under Section 135 of the Electricity Act, 2003. Having led no evidence, he failed to rebut the statutory presumption. Tilak Raj is accordingly **convicted under Section 135 of the Electricity Act, 2003**, and is to be heard on the quantum of sentence.

SIGNIFICANCE

The oldest offence in the present set (2017) decided in 2026, and a reminder that public street-light infrastructure is as much the licensee’s property as its poles. Five propositions stand out:

- **Street-light infrastructure counts as the licensee’s works.** A tap on the distribution box feeding public street lights is a Section 135(1)(a) connection with the licensee’s service facilities, no different from a pole hook.
- **Commercial theft is priced accordingly.** The 2.518 KW wire-rolling load generated a Rs. 1,73,506/- assessment at double the commercial tariff under Regulation 63.
- **Cross-examination answers bound the accused.** PW-3’s elicited answers — no meter installed, the accused’s workers present — came from the defence’s own questions and reinforced the prosecution.
- **Delay did not dilute the case.** More than eight years passed between offence (2017) and judgment (2026), including a Section 251 notice served seven years after the inspection, yet the documented, videographed inspection held firm.
- **No settlement, no rebuttal — the presumption operated at full force.** With the bill unpaid and no defence evidence, the conviction rests squarely on the unrebutted third-proviso presumption.

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court’s own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569	An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.	Relied on
<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, CrI. A. 1060/2010 (22.12.2010)	Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.	Relied on

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Neeraj Dutt v. State</i> SLP(Crl.) 6497/2020	“Shall presume” denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.	Relied on
<i>Hiten P. Dalal v. Bratindranath Banerjee</i> 2001 (6) SCC 16	A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.	Relied on
<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.